ORDINANCE OF THE TOWN OF NORTH PROVIDENCE AMENDING THE EXISTING ZONING ORDINANCE AND ZONING MAP

WHEREAS, the Town Council of the Town of North Providence desires to amend, by Ordinance, its existing Zoning Ordinance and Zoning Map with regards to the Zoning of Tax Assessor's Lots 724, 730, 746, 748 & 750 on Assessor's Plat 22B and abandoned portions of Utica Street and Martin Street (from Mineral Spring Avenue to Dutchess Avenue as depicted on the plans submitted by the Applicant) (the "premises"), said property bordering Mineral Spring Avenue; and

WHEREAS, an application has been filed by 160-1 Mineral Spring Avenue, LLC requesting the amendment the North Providence Zoning Ordinance and Zoning Map.

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That the existing Zoning Ordinance and Zoning Map of the Town of North Providence be amended so that the Zoning of Lots 724, 730, 746, 748 & 750 on Assessor's Plat 22B and abandoned portions of Utica Street and Martin Street (from Mineral Spring Avenue to Dutchess Avenue as depicted on the plans submitted by the Applicant), said premises bordering Mineral Spring Avenue, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from its current designated uses of Professional Office ("PO") and Medium Low Density Residential ("MLD Residential") to Commercial General (CG).

SECTION TWO: That a Special Use Permit is hereby granted, as a matter of right, allowing for two (2) drive thru windows, as depicted on the plans submitted, on Lots 724, 730, 746, 748 & 750 on Assessor's Plat 22B.

SECTION THREE: That the fifteen foot (15') side yard setback off of a portion of the westerly property boundary line, as depicted on the plans submitted, shall be deemed sufficient and, therefore, compliant.

SECTION FOUR: That the current seventy-nine (79) parking spaces, as depicted on the plans submitted, although deficient under the current zoning code by eleven (11) spaces, shall be deemed sufficient and, therefore, compliant.

SECTION FIVE: That the Amendment set forth in Section One herein shall be subject to the following restrictions:

1. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

2. That the amendment is approved after consideration of the Decision & Recommendation (and conditions contained therein) of the North Providence Planning Board dated April 30, 2021, which are incorporated herein by reference and made conditions of this Ordinance;

3. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

4. That there will be zero runoff from the premises to the abutting properties;

5. There shall be appropriate vinyl fencing, of at least six (6') feet in height and in a color acceptable to the abutting neighbors, and landscaping so that the premises is conducive to the abutting neighborhood. Said landscaping and fencing to be approved by the Town of North Providence Building and Planning Offices.

SECTION SIX: That the plans submitted and the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

SECTION SEVEN: The provisions of this Ordinance are severable and, in the event that any provision of this Ordinance is determined to be invalid, for any reason, the remaining provisions shall remain in full force and effect.

SECTION EIGHT: This Ordinance shall take effect upon adoption and any Ordinance inconsistent herewith is hereby repealed.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: June 21, 2021

COUNCIL PRESIDENT

APPROVED:

MAYOR

TOWN CLERK

TOWN OF NORTH PROVIDENCE TOWN COUNCIL

In Re: Application of 1601 Mineral Spring Avenue, LLC

DECISION

The above matter came before the North Providence Town Council, on May 19, 2021, with regard to an application filed by the above-referenced party to amend the existing North Providence Zoning Map and Zoning Ordinance. The representative of the applicants was present and was represented by legal counsel and after a public hearing before the North Providence Town Council, the Town Council, upon a roll call vote of six (6) ayes and zero (0) nays, makes the following decision:

1. That the existing Zoning Ordinance and Zoning Map of the Town of North Providence be amended so that the Zoning of Lots 724, 730, 746, 748 & 750 on Assessor's Plat 22B and abandoned portions of Utica Street and Martin Street(from Mineral Spring Avenue to Dutchess Avenue as depicted on the plans submitted), said premises bordering Mineral Spring Avenue, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from be changed from Commercial Professional (CP) and Residential 8 (R8) to Commercial General (CG), subject to the restrictions set forth in Section 2 herein.

2. That the amendment set forth in Section 1 herein shall be subject to the following restrictions:

A. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

B. That the amendment is approved after consideration of the Decision & Recommendation (and conditions contained therein) of the North Providence Planning Board dated April 30, 2021, which are incorporated herein by reference and made conditions of this Decision;

C. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

D. That there will be zero runoff from the premises to the abutting properties;

E. There shall be appropriate vinyl fencing, of at least six (6') feet in height and in a color acceptable to the abutting neighbors, and landscaping so that the premises is conducive to the abutting neighborhood. Said landscaping and fencing to be approved by the Town of North Providence Building and Planning Offices.

3. That a Special Use Permit is hereby granted, as a matter of right, allowing for two (2) drive thru windows, as depicted on the plans submitted, on Lots 724, 730, 746, 748 & 750 on Assessor's Plat 22B.

4. That the fifteen foot (15') side yard setback off of a portion of the westerly property boundary line, as depicted on the plans submitted, shall be deemed sufficient and, therefore, compliant.

5. That the current seventy-nine (79) parking spaces, as depicted on the plans submitted, although deficient under the current zoning code by eleven (11) spaces, shall be deemed sufficient and, therefore, compliant.

6. That the plans submitted and the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

7. That any approval by the Town of North Providence Town Council is subject to the further approval by the State of Rhode Island, Statewide Planning Department.

Entered as a Decision of the North Providence Town Council, the local authority, on this 20th day of May, 2021.

ADOPTED: May 19, 2021

COUNCIL PRESIDENT

Maryann Gemgelus

TOWN CLERK